

It is expected that a Quorum of the Administration Committee, Board of Public Works, and Common Council will be attending this meeting: (although it is not expected that any official action of any of those bodies will be taken)

**CITY OF MENASHA
PERSONNEL COMMITTEE
First Floor Conference Room
100 Main Street, Menasha
March 4, 2019
7:00 PM**

Or immediately following the Board of Public Works

AGENDA

- A. CALL TO ORDER
- B. ROLL CALL
- C. MINUTES TO APPROVE
 - 1. Personnel Committee, 1/21/19
- D. DISCUSSION/ACTION ITEMS
 - 1. Tentative Agreement between City of Menasha and Menasha Professional Policy Union, January 1, 2019 – December 31, 2020.
- E. ADJOURNMENT

CITY OF MENASHA
PERSONNEL COMMITTEE
First Floor Conference Room
100 Main Street, Menasha
January 21, 2019
MINUTES

DRAFT

A. CALL TO ORDER

Meeting called to order by Chairman Ted Grade at 8:00 p.m.

B. ROLL CALL

PRESENT: Aldermen Rebecca Nichols, James Taylor, Stan Sevenich, Mark Langdon, Steve Krueger, Tom Grade, Ted Grade, Randy Ropella, Mayor Merkes.

ALSO PRESENT: CA Captain, PC Styka, ASD Jacobs, PHD McKenney, LD Lenz, Clerk Galeazzi.

C. MINUTES TO APPROVE

1. Personnel Committee, 1/7/19

Moved by Ald. Krueger seconded by Ald. Sevenich to approve minutes.

Motion carried on voice vote.

D. DISCUSSION/ACTION ITEMS

1. FICA Alternative Retirement Plan/Precision Retirement Group

ASD Jacobs explained a fringe benefit program by Precision Retirement Group that can be offered to employees that work under 1200 hours annually and are not eligible for Wisconsin Retirement benefits. Instead of the employee and employer each paying 6.2% of wages to Social Security, the employee could contribute 7.5%, pre-taxed, into a retirement program through Precision Retirement Group. The employer (City) would not be required to contribute to Social Security for the employee. ASD Jacobs estimates a \$15,000 to \$31,000 annual savings in the City's share of social security taxes. The alternative plan would be mandatory for new or returning employees who are not presently active employees and it would be optional for existing active employees. Cities of Neenah and Appleton offer this program to their part-time and temporary employees.

LD Lenz stated she has mentioned this program to some of the part-time employees at the Library, and they showed an interest in taking advantage of the program.

PC Styka stated some of the part-time employees at the Police Department may elect to opt out of the program, since it would not be as much of a benefit to them.

PHD McKenney stated her concern of recruiting and retaining qualified part-time people in the Health field since many of them only want part-time employment and are expecting social security benefits.

CA Captain mentioned the impact of not paying into social security for those who may qualify for disability benefits.

Moved by Mayor Merkes seconded by Ald. Ted Grade to approve the City of Menasha continuing in the traditional Social Security Administration program without participation in the FICA Alternative Retirement Plan.

General discussion ensued on:

- impact to employees' retirement and social security benefits;
- manipulating the system;
- employees impacted by this change;
- may be detrimental to retaining qualified employees;
- treating all employees fairly;
- some people rely on social security benefits.

Motion fails on roll call 4-5.

Ald. Nichols, Krueger, Ropella, Mayor Merkes voted yes.

Ald. Taylor, Sevenich, Langdon, Tom Grade, Ted Grade voted no.

Moved by Ald. Sevenich seconded by Ald. Langdon to approve City of Menasha participating in FICA Alternative Retirement Plan/Precision Retirement Group.

General discussion ensued on offering the employee the option to opt out of the alternative plan.

Moved by Ald. Nichols seconded by Ald. Sevenich to amend, to include an effective date of March 2019 and the ability to opt out of the alternative plan.

Motion on amendment carried on roll call 8-1. Mayor Merkes voted no.

Motion as amended failed on roll call 3-6.

Ald. Taylor, Sevenich, Langdon voted yes.

Ald. Nichols, Krueger, Tom Grade, Ted Grade, Ropella, Mayor Merkes voted no.

E. ADJOURNMENT

Moved by Ald. Sevenich seconded by Ald. Langdon adjourn at 8:56 p.m.

Motion carried on voice vote.

Deborah A. Galeazzi, WCMC
City Clerk



DATE: February 26, 2019
TO: Members of the Personnel Committee
FROM: City Attorney Pam Captain, Administrative Director John Jacob and Police Chief Tim Styka
RE: Tentative Contract Agreement for Contract Years 2019-2020 with WPPA/LEER Local 602 the Menasha Professional Police Union

We are pleased to announce a tentative agreement with Local 602, the Menasha Professional Police Union for a 2 year extension of the contract with the City of Menasha. A copy of the entire tentative agreement is attached to this memo. The following is a brief summary of the major points to the agreement:

Duration:

2 year contract commencing 1/1/2019 and expiring on 12/31/2020.

Wages:

2019: 2% wage increase effective 4/7/2019, 1% wage increase effective 10/6/2019
2020: 3% wage increase effective 12/29/2019

The overall impact of this agreement on wages in the first year equates to a cost 2.25%, which corresponds to the budgeted amount. The 3% increase will be offset by an increase in the amount employees will pay in health insurance premiums.

Vest Incentive – Physical Fitness Incentive

The current language which pays 1% to officers who certify they have worn their body armor will be removed. In its place, a voluntary physical fitness incentive will be created. Officers who choose to participate in this incentive will be paid \$1,400 upon successful completion of the testing. Officers who have achieved full employment status prior to 1/1/2019 will have the option to elect not to participate in the program and if they certify they have worn their body armor during the year will be paid \$500.

Physical fitness programs are becoming more popular in law enforcement due to the tremendous benefit to both the employees and the employer. Studies have

shown that 50% of police officers have 3 of 5 major risk factors for coronary heart disease. Promoting physical fitness throughout an officers career can reduce absenteeism, lower health insurance costs and increase the life expectancy of officers in retirement.

Health Insurance Premiums

Members will contribute 8% to their health insurance premiums in 2019 and 10% in 2020. Currently other City employees pay 7.5% of the health insurance premium.

Compensatory Time

The amount of time which can be booked in a year would increase from 50 to 150 hours. However, only 50 of those hours can be carried over and those hours can only be used for time off and they are not eligible for payout in a subsequent year.

Grievance / Arbitration Process

The timeframes included in the grievance and arbitration processes will be changed to 10 days for all steps in the procedures. This was done to simplify the process and avoid any confusion with different timeframes in each step.

Conclusion

We believe this agreement represents a fair and equitable result that fairly treats both the City and the Union.



**SUMMARY OF TENTATIVE AGREEMENT
BETWEEN THE CITY OF MENASHA AND
WPPA/LEER LOCAL 602**

February 25, 2019

1. **Article IV (A) Wages:**
2019: 2% wage increase effective 4/7/2019, 1% wage increase effective 10/6/2019
2020: 3% wage increase effective 12/29/2019
(Wage schedule listed in Exhibit 1)
2. **Article IV (B)(4) Assignments:** Removing the \$200 paid annually to officers engaged in the duties of CRT and Evidence Technician and adding language to pay certified Wisconsin Tactical Instructors \$200 annually.
3. **Article IV (B)(5) Assignments: PLACEHOLDER IF AGREEMENT CAN BE REACHED ON K-9 LANGUAGE**
4. **Article IV (E) Vest Incentive:** The current language which pays 1% to officers who certify they have worn their body armor will be removed. In its place, a voluntary physical fitness incentive will be created. Officers who choose to participate in this incentive will be paid \$1,400 upon successful completion of the testing. Officers who have achieved full employment status prior to 1/1/2019 will have the option to elect not to participate in the program and if they certify they have worn their body armor during the year will be paid \$500. (Full language attached in Exhibit 2)
5. **Article IV (F) Health Insurance:**
2019: 8% of the health insurance premium
2020: 10% of the health insurance premium
6. **Article V (A)(2) Compensatory Time:** The maximum amount of time which can be booked increases from 50 to 150 hours, with an annual carry over cap of 50 hours.
7. **Article VI (A) Fair Share:** This section has been removed in its entirety and a new section "Dues Deduction" has been created. (Full language in Exhibit 3)

SUMMARY OF TENTATIVE AGREEMENT
BETWEEN THE CITY OF MENASHA AND
WPPA/LEER LOCAL 602
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8. **Article VII Grievance Procedure:** The timeframes throughout the process have been changed to ten (10) days in each of the steps.
9. **Article VII Arbitration:** The timeframe has been changed from five (5) days to ten (10) days.
10. **Article XV Term of the Agreement:** The agreement shall be in effect from January 1, 2019 – December 31, 2020.

Accepted this ____ day of February 2019.

Authentic fax or email signatures are as valid as an original.

City of Menasha

WPPA/LEER Local 602

(Name)



(Name)

EXHIBIT 1
Pay Schedule

	<u>Step</u>	Monthly Pay +2% Effective <u>04/07/2019</u>
Patrol Officers	1	\$4,313
	2	\$4,514
	3	\$4,968
	4	\$5,461
	5	\$5,963
	6	\$6,130
	OIC	\$6,283

	<u>Step</u>	Monthly Pay 1% Effective <u>10/06/2019</u>
Patrol Officers	1	\$4,356
	2	\$4,559
	3	\$5,018
	4	\$5,516
	5	\$6,023
	6	\$6,191
	OIC	\$6,346

	<u>Step</u>	Monthly Pay 3% Effective <u>12/29/2019</u>
Patrol Officers	1	\$4,487
	2	\$4,696
	3	\$5,169
	4	\$5,681
	5	\$6,204
	6	\$6,377
	OIC	\$6,536

EXHIBIT 2

Physical Fitness Incentive

- a. All Officers have the opportunity to participate in a physical fitness incentive program. The testing will include the most current State of Wisconsin exit level for the Recruit Academy in the areas of Pushups; Sit ups; and the one-and-a-half-mile run.
- b. Officers who desire to participate in this program must indicate their willingness to participate to the Chief of Police or designee in writing no later than January 31, of each year.
- c. Testing will take place in September of each year and all officer participating shall be considered on duty.
- d. The run course will be held on an outside track no smaller than 400meters.
- e. Officer must meet the minimum requirement for each of the three events; pushups, sit ups, mile and a half run in order to receive a lump sum payment of one thousand four hundred dollars (\$1,400.00), paid on the first pay check in December. This sum shall not be added to base wages, nor shall it be included when calculating the hourly rate for purposes of overtime, or the payout of any benefits at termination of employment.
- f. Should an officer fail to meet the minimum requirement in any area, they shall have the ability to retest prior to November 30, at a date and time set by the Chief or his designee. The officer must complete all three events, pushups, sit ups, and mile and a half run, meeting the minimum requirement in each to qualify for the lump sum payment of \$1,400.00. This sum shall not be added to base wages, nor shall it be included when calculating the hourly rate for purposes of overtime, or the payout of any benefits at termination of employment.
- g. Should an officer fail to meet the minimum requirement in any/all area(s) there shall be no discipline to such officer.
- h. Any officer on workman's compensation and unable to perform the physical fitness testing due to workman's compensation restrictions shall be allowed to test as soon as they are physically capable; this same testing shall be allowed to those employees with non-work-related medical conditions which made them unable to perform the physical fitness testing.
- i. Officer who have achieved full employment status prior to 1/1/2019 may elect to not participate in this program, and instead certify by November 1st of each year that they have worn their approved body armor over the past year. Officers who elect and certify this option will receive a \$500.00 payment on the first pay check in December of that year. This sum shall not be added to base wages, nor shall it be included when calculating the hourly rate for purposes of overtime, or the payout of any benefits at termination of employment.

- j. Those officers assigned to plain clothes duty shall be required to wear the body armor for all appropriate duties. The Chief of Police or his/her designee may grant exceptions to this requirement.

EXHIBIT 3

Dues Deduction

1. The Employer agrees to deduct monthly dues in the amount certified by the WPPA/LEER from the pay of employees who individually sign a dues deduction authorization form provided by the Employer where the Employee is knowingly and affirmatively consenting to the deduction of dues from the employee's paycheck, including any Local Association dues which the employee has authorized to be deducted in conjunction with the WPPA/LEER dues.
2. It shall be the employee's responsibility to sign the dues deduction authorization form and provide the signed form to the Employer and Association no less than 30 days prior to the date in which dues deductions are to commence.
3. The Employer shall deduct the combined dues amount each month for each employee requesting such deduction, upon receipt of such form and shall remit the total of such deductions, with a list of employees from whom such sums have been deducted, to the WPPA/LEER or Local Association if applicable, in one lump sum not later than the 15th of each month.
4. Authorization of dues deduction by a member may be revoked upon notice in writing to the Employer, WPPA or to the Local Association and with the understanding that the deduction will cease as reasonably as practical after receipt of written notice of revocation.
5. No employee shall be required to join the Association, but membership in the Association shall be made available to all employees in the bargaining unit who apply consistently with the either the WPPA or local Association Constitution and Bylaws.
6. The Employer agrees to notify the WPPA, Madison Office in writing of the name of any new hire into the bargaining unit. No employee shall be denied membership because of race, creed, color, sex or other legally protected class status.
7. It is expressly understood and agreed that WPPA/LEER will refund to the or the employee involved any dues erroneously deducted by the employer and paid to WPPA/LEER and/or the Local Association. WPPA/LEER shall indemnify and hold the harmless against any and all third party claims, demands, suits, order, judgments or any other forms of liability against or incurred by the Employer, including all costs of defense and attorney's fees, which may arise out of action taken or not taken by the Employer's compliance with this Article. Provided that the defense of any such claims, demands, suits or other forms of liability shall be interpreted to preclude the Employer from participating in any legal proceedings challenging the application or interpretation of the Article through representatives of its own choosing and at its own expense